"V. 49. Having well considered the (disgusting) origin of flesh and the (cruelty of) fettering and slaying corporeal beings, let him entirely abstain from eating flesh."

If these verses can be treated as containing positive injunctions they would be sufficient to explain why the Brahmins gave up meat-eating and became vegetarians. But it is impossible to treat these verses as positive injunctions, carrying the force of law. They are either exhortations or interpolations introduced after the Brahmins had become vegetarians in praise of the change. That the latter is the correct view is proved by the following verses which occur in the same chapter of the Manu Smriti. :

"V. 28 : The Lord of creatures (Prajapati) created this whole (world to be) the sustenance of the vital spirit; both the immovable and the movable creation is the food of the vital spirit.

"V. 29. What is destitute of motion is the food of those endowed with locomotion; (animals) without fangs (are the food) of those with fangs, those without hands of those who possess hands, and the timid of the bold.

"V. 30. The eater who daily even devours those destined to be his food, commits no sin; for the creator himself created both the eaters and those who are to be eaten (for those special purposes).

"V. 56. There is no sin in eating meat, in (drinking) spirituous liquor, and in carnal intercourse for that is the natural way of created beings, but abstention brings great rewards.

"V. 27. One may eat meat when it has been sprinkled with water, while Mantras were recited, when Brahmanas desire (one's doing it) when one is engaged (in the performance of a rite) according to the law, and when one's life is in danger.

"V. 31. 'The consumption of meat (is befitting) for scrifices,' that is declared to be a rule made by the gods, but to persist (in using it) on other (occasions) is said to be a proceeding worthy of Rakshasas.

"V. 32. He who eats meat, when he honours the gods and manes commits no sin, whether he has bought it, or himself has killed (the animal) or has received it as a present from others.

"V. 42. A twice-born man who, knowing the true meaning of the Veda, slays an animal for these purposes, causes both himself and the animal to enter a most blessed state.

"V. 39. Swayambhu (the self-existent) himself created animals for the sake of sacrifices; sacrifices (have been instituted) for the good of this whole (world); hence the slaughtering (of beasts) for sacrifice is not slaughtering (in the ordinary sense of the word).

"V. 40. Herbs, trees, cattle, birds, and other animals that have been destroyed for sacrifices, receive (being reborn) higher existences."

Manu goes further and makes eating of flesh compulsory. Note the following verse :

"V. 35. But a man who, being duly engaged (to officiate or to. dine at a sacred rite), refuses to eat meat, becomes after death an animal during twentyone existences."

That Manu did not prohibit meat-eating is evident enough. That Manu Smriti did not prohibit cow-killing can also be proved from the Smriti itself. In the first place, the only references to cow in the Manu Smriti are to be found in the catalogue of rules which are made applicable by Manu to the Snataka. They are set dut below :-

1. A Snataka should not eat food which a cow has smelt.[1]
2. A Snataka should not step over a rope to which a calf is tied.[2]
3. A Snataka should not urinate in a cowpan.[3]
4. A Snataka should not answer call of nature facing a cow.[4]
5. A Snataka should not keep his right arm uncovered when he enters a cowpan.[5]
6. A Snataka should not interrupt a cow which is sucking her calf, nor tell anybody of it[6]
7. A Snataka should not ride on the back of the cow.[7]
8. A Snataka should not offend the cow.[8]
9. A Snataka who is impure must not touch a cow with his hand.[9]

From these references it will be seen that Manu did not regard the cow as a sacred animal. On the other hand, he regarded it as an impure animal whose touch caused ceremonial pollution.

There are verses in Manu which show that he did not prohibit the eating of beef. In this connection, reference may be made to Chapter III. 3. It says :-

"He (Snataka) who is famous (for the strict performance of) his duties and has received his heritage, the Veda from his father, shall be honoured, sitting on couch and adorned with a garland with the present of a cow (the honey-mixture)."

The question is why should Manu recommend the gift of a cow to a Snataka? Obviously, to enable him to perform Madhuparka. If that is so, it follows that Manu knew that Brahmins did eat beef and he had no objection to it.

1 Manu, 209
2 Ibid, 38
3 Ibid, 45
4 Manu, 48
5 Ibid, 58
6 Ibid, 59
7 Manu, 70
8 Ibid, 162
9 Ibid, 142

Another reference would be to Manu's discussion of the animals whose meat is eatable and those whose meat is not. In Chapter V. 18. he says :-

> "The porcupine, the hedgehog, the iguana, the rhinoceros, the tortoise, and the hare they declare to be eatable, likewise those (domestic animals) that have teeth in one jaw only, excepting camels."

In this verse Manu gives general permission to eat the flesh of all domestic animals that have teeth in one jaw only. To this rule Manu makes one exception, namely, the camel. In this class of domestic animals— those that have teeth in one jaw only— falls not only the camel but also the cow. It is noteworthy that Manu does not make an exception in the case of the cow. This means that Manu had no objection to the eating of the cow's flesh.

Manu did not make the killing of the cow an offence. Manu divides sins into two classes (i) mortal sins and (ii) minor sins. Among the mortal sins Manu includes :

> "XI. 55. Killing a Brahmana, drinking (the spirituous liquor called Sura) stealing the (gold of Brahmana) a adultery with a Guru's wife, and associating with such offenders."

Among minor sins Manu includes :

> "XI. 60. Killing the cow, sacrificing for those unworthy to sacrifice, adultery, setting oneself, casting off one's teacher, mother, father or son, giving up the (daily) study of the Veda and neglecting the (sacred domestic) fire."

From this it will be clear that according to Manu cow-killing was only a minor sin. It was reprehensible only if the cow was killed without good and sufficient reason. Even if it was otherwise, it was not heinous or inexplicable. The same was the attitude of Yajnavalkya[1].

All this proves that for generations the Brahmins had been eating beef. Why did they give up beef-eating? Why did they, as an extreme step, give up meat eating altogether and become vegetarians? It is two revolutions rolled into one. As has been shown it has not been done as a result of the preachings of Manu, their Divine Law-maker. The revolution has taken place in spite of Manu and contrary to his directions. What made the Brahmins take this step? Was philosophy responsible for it? Or was it dictated by strategy?

Two explanations are offered. One explanation is that this deification of the cow was a manifestation of the Advaita philosophy

1 Yaj. III. 227 and III 234.

that one supreme entity pervaded the whole universe, that on that account all life human as well as animal was sacred. This explanation is obviously unsatisfactory. In the first place, it does not fit in with facts. The Vedanta Sutra which proclaims the doctrine of oneness of life does not prohibit the killing of animals for sacrificial purposes as is evident from II.1.28. In the second place, if the transformation was due to the desire to realize the ideal of Advaita then there is no reason why it should have stopped with the cow. It should have extended to all other animals.

Another explanation[1] more ingenious than the first, is that this transformation in the life of the Brahmin was due to the rise of the doctrine of the Transmigration of the Soul. Even this explanation does not fit in with facts. The Brahadaranyaka Upanishad upholds the doctrine of transmigration (vi.2) and yet recommends that if a man desires to have a learned son born to him he should prepare a mass of the flesh of the bull or ox or of other flesh with rice and ghee. Again, how is it that this doctrine which is propounded in the Upanishads did not have any effect on the Brahmins upto the time of the Manu Smriti, a period of at least 400 years. Obviously, this explanation is no explanation. Thirdly, if Brahmins became vegetarians by reason of the doctrine of transmigration of the soul how is it, it did not make the non-Brahmins take to vegetarianism?

To my mind, it was strategy which made the Brahmins give up beef-eating and start worshipping the cow. The clue to the worship of the cow is to be found in the struggle between Buddhism and Brahmanism and the means adopted by Brahmanism to establish its supremacy over Buddhism. The strife between Buddhism and Brahmanism is a crucial fact in Indian history. Without the realisation of this fact, it is impossible to explain some of the features of Hinduism. Unfortunately students of Indian history have entirely missed the importance of this strife. They knew there was Brahmanism. But they seem to be entirely unaware of the struggle for supremacy in which these creeds were engaged and that their struggle which extended for 400 years has left some indeliable marks on religion, society and politics of India.

This is not the place for describing the full story of the struggle. All one can do is to mention a few salient points. Buddhism was at one time the religion of the majority of the people of India. It continued to be the religion of the masses for hundreds of years. It attacked Brahmanism on all sides as no religion had done before.

1 Kane's Dharma Shastra II. Part II. P 776

Brahmanism was on the wane and if not on the wane, it was certainly on the defensive. As a result of the. spread of Buddhism, the Brahmins had lost all power and prestige at the Royal Court and among the people. They were smarting under the defeat they had suffered at the hands of Buddhism and were making all possible efforts to regain their power and prestige. Buddhism had made so deep an impression on the minds of the masses and had taken such a hold of them that it was absolutely impossible for the Brahmins to fight the Buddhists except by accepting their ways and means and practising the Buddhist creed in its extreme form. After the death of Buddha his followers started setting up the images of the Buddha and building stupas. The Brahmins followed it. They, in their turn, built temples and installed in them images of Shiva, Vishnu and Ram and Krishna etc.,—all with the object of drawing away the crowd that was attracted by the image worship of Buddha. That is how temples and images which had no place in Brahmanism came into Hinduism. The Buddhists rejected the Brahmanic religion which consisted of Yajna and animal sacrifice, particularly of the cow. The objection to the sacrifice of the cow had taken a strong hold of the minds of the masses especially as they were an agricultural population and the cow was a very useful animal. The Brahmins in all probability had come to be hated as the killer of cows in the same way as the guest had come to be hated as *Gognha,* the killer of the cow by the householder, because whenever he came a cow had to be killed in his honour. That being the case, the Brahmins could do nothing to improve their position against the Buddhists except by giving up the Yajna as a form of worship and the sacrifice of the cow.

That the object of the Brahmins in giving up beef-eating was to snatch away from the Buddhist Bhikshus the supremacy they had acquired is evidenced by the adoption of vegetarianism by Brahmins. Why did the Brahmins become vegetarian? The answer is that without becoming vegetarian the Brahmins could not have recovered the ground they had lost to their rival namely Buddhism. In this connection it must be remembered that there was one aspect in which Brahmanism suffered in public esteem as compared to Buddhism. That was the practice of animal sacrifice which was the essence of Brahmanism and to which Buddhism was deadly opposed. That in an agricultural population there should be respect for Buddhism and revulsion against Brahmanism which involved slaughter of animals including cows and bullocks is only natural. What could the Brahmins do to recover the lost ground? To go one better than the

Buddhist Bhikshus not only to give up meat-eating but to become vegetarians— which they did. That this was the object of the Brahmins in becoming vegetarians can be proved in various ways.

If the Brahmins had acted from conviction that animal sacrifice was bad, all that was necessary for them to do was to give up killing animals for sacrifice. It was unnecessary for them to be vegetarians. That they did go in for vegetarianism makes it obvious that their motive was far-reaching. Secondly, it was unnecessary for them to become vegetarians. For the Buddhist Bhikshus were not vegetarians. This statement might surprise many people owing to the popular belief that the connection between Ahimsa and Buddhism was immediate and essential. It is generally believed that the Buddhist Bhikshus eschewed animal food. This is an error. The fact is that the Buddhist Bhikshus were permitted to eat three kinds of flesh that were deemed pure. Later on they were extended to five classes. Yuan Chwang, the Chinese traveller was aware of this and spoke of the pure kinds of flesh as *San-Ching*. The origin of this practice among the Bhikshus is explained by Mr. Thomas Walters. According to the story told by him[1]—

> "In the time of Buddha there was in Vaisali a wealthy general named Siha who was a convert to Buddhism. He became a liberal supporter of the Brethren and kept them constantly supplied with good flesh-food. When it was noticed abroad that the Bhikshus were in the habit of eating such food specially provided for them, the Tirthikas made the practice a matter of angry reproach. Then the abstemious ascetic Brethren, learning this, reported the circumstances to the Master, who thereupon called the Brethren together. When they assembled, he announced to them the law that they were not to eat the flesh of any animal which they had seen put to death for them, or about which they had been told that it had been slain for them. But he permitted to the Brethern as 'pure' (that is, lawful) food the flesh of animals the slaughter of which had not been seen by the Bhikshus, not heard of by them, and not suspected by them to have been on their account. In the Pali and *Ssu-fen* Vinaya it was after a breakfast given by Siha to the Buddha and some of the Brethren, for which the carcass of a large ox was procured that the Nirgranthas reviled the Bhikshus and Buddha instituted this new rule declaring fish and flesh 'pure' in the three conditions. The animal food now permitted to the Bhikshus came to be known as the 'three pures' or 'three pure kinds of flesh', and it was tersely described as 'unseen, unheard, unsuspected', or as the Chinese translations sometimes have it 'not seen, not heard nor suspected to be on my account'. Then two more kinds of animal food were declared "lawful for the Brethren viz., the flesh of animals which had died a natural death, and that of animals which had been killed by a bird of prey or other savage creature. So there came to be five classes or

1 Yuan Chwang (1904) Vol. I. p. 55

descriptions of flesh which the professed Buddhist was at liberty to use as food. Then the 'unseen, unheard, unsuspected' came to be treated as one class, and this together with the 'natural death' and 'bird killed' made a *san-ching."*

As the Buddhist Bhikshus did eat meat the Brahmins had no reason to give it up. Why then did the Brahmins give up meat-eating and become vegetarians? It was because they did not want to put themselves merely on the same footing in the eyes of the public as the Buddhist Bhikshus.

The giving up of the Yajna system and abandonment of the sacrifice of the cow could have had only a limited effect. At the most it would have put the Brahmins on the same footing as the Buddhists. The same would have been the case if they had followed the rules observed by the Buddhist Bhikshus in the matter of meat-eating. It could not have given the Brahmins the means of achieving supremacy over the Buddhists which was their ambition. They wanted to oust the Buddhists from the place of honour and respect which they had acquired in the minds of the masses by their opposition to the killing of the cow for sacrificial purposes. To achieve their purpose the Brahmins had to adopt the usual tactics of a wreckless adventurer. It is to beat extremism by extremism. It is the strategy which all rightists use to overcome the leftists. The only way to beat the Buddhists was to go a step further and be vegetarians.

There is another reason which can be relied upon to support the thesis that the Brahmins started cow-worship, gave up beef-eating and became vegetarians in order to vanquish Buddhism. It is the date when cow-killing became a mortal sin. It is well-known that cow-killing was not made an offence by Asoka. Many people expect him to have come forward to prohibit the killing of the cow. Prof. Vincent Smith regards it as surprising. But there is nothing surprising in it.

Buddhism was against animal sacrifice in general. It had no particular affection for the cow. Asoka had therefore no particular reason to make a law to save the cow. What is more astonishing is the fact that cow-killing was made a *Mahapataka,* a mortal sin or a capital offence by the Gupta Kings who were champions of Hinduism which recognised and sanctioned the killing of the cow for sacrificial purposes. As pointed out by Mr. D. R. Bhandarkar[1]—

"We have got the incontrovertible evidence of inscriptions to show that early in the 5th century A. D. killing a cow was looked upon as an offence of the

1 Some Aspects of Ancient Indian Culture (1940) pp. 78-79.

deepest turpitude, turpitude as deep as that involved in murdering a Brahman. We have thus a copper-plate inscription dated 465 A.D. and referring itself to the reign of Skandagupta of the Imperial Gupta dynasty. It registers a grant and ends with a verse saying : 'Whosoever will transgress this grant that has been assigned (shall become as guilty as) the slayer of a cow, the slayer of a spiritual preceptor (or) the slayer of a Brahman. A still earlier record placing *go-hatya* on the same footing as *brahma hatya* is that of Chandragupta II, grandfather of Skandagupta just mentioned. It bears the Gupta date 93, which is equivalent to 412 A.D. It is engraved on the railing which surrounds the celebrated Buddhist stupa at Sanchi, in Central India. This also speaks of a benefaction made by an officer of Chandragupta and ends as follows: .. ... "Whosoever shall interfere with this arrangement .. he shall become invested with (the guilt of) the slaughter of a cow or of a Brahman, and with (the guilt of) the five *anantarya."* Here the object of this statement is to threaten the resumer of the grant, be he a Brahminist or a Buddhist, with the sins regarded as mortal by each community. The *anantaryas* arc the five *mahapatakas* according to Buddhist theology. They arc: matricide, patricide, killing an Arhat, shedding the blood of a Buddha, and causing a split among the priesthood. The *mahapatakas* with which a Brahminist is here threatened are only two : viz., the killing of a cow and the murdering of a Brahman. The latter is obviously a *mahapataka* as it is mentioned as such in all the Smritis, but the former has been specified only an upapalaka by Apastamba, Manu, Yajnavalkya and so forth. But the very fact that it is here associated with *brahma-hatya* and both have been put on a par with the *anantaryas* of the Buddhists shows that in the beginning of the fifth century A.D., it was raised to the category of *mahapatakas*. Thus *go-hatya* must have come to be considered a *mahapataka* at least one century earlier, i.e., about the commencement of the fourth century A.D."

The question is why should a Hindu king have come forward to make a law against cow-killing, that is to say, against the Laws of Manu? The answer is that the Brahmins had to suspend or abrogate a requirement of their Vedic religion in order to overcome the supremacy of the Buddhist Bhikshus. If the analysis is correct then it is obvious that the worship of the cow is the result of the struggle between Buddhism and Brahminism. It was a means adopted by the Brahmins to regain their lost position.

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CHAPTER XIV

WHY SHOULD BEEF-EATING MAKE BROKEN MEN UNTOUCHABLES?

THE stoppage of beef-eating by the Brahmins and the non-Brahmins and the continued use thereof by the Broken Men had produced a situation which was different from the old. This difference lay in the face that while in the old situation everybody ate beef, in the new situation one section did not and another did. The difference was a glaring difference. Everybody could see it. It divided society as nothing else did before. All the same, this difference need not have given rise to such extreme division of society as is marked by Untouchability. It could have remained a social difference. There are many cases where different sections of the community differ in their foods. What one likes the other dislikes and yet this difference does not create a bar between the two.

There must therefore be some special reason why in India the difference between the Settled Community and the Broken Men in the matter of beef-eating created a bar between the two. What can that be? The answer is that if beef-eating had remained a secular affair—a mere matter of individual taste-such a bar between those who ate beef and those who did not would not have arisen. Unfortunately beef-eating, instead of being treated as a purely secular matter, was made a matter of religion. This happened because the Brahmins made the cow a sacred animal. This made beef-eating a sacrilege. The Broken Men being guilty of sacrilege necessarily became beyond the pale of society.

The answer may not be quite clear to those who have no idea of the scope and function of religion in the life of the society. They may ask: Why should religion make such a difference? It will be clear if the following points regarding the scope and function of religion are borne in mind.

To begin with the definition[1] of religion. There is one universal feature which characterises all religions. This feature lies in religion being a unified system of beliefs and practices which (1) relate to sacred things and (2) which unite into one single community all those who adhere to them. To put it slightly differently, there are two elements in every religion. One is that religion is inseparable from sacred things. The other is that religion is a collective thing inseparable from society.

The first element in religion presupposes a classification of all things, real and ideal, which are the subject-matter of man's thought, into two distinct classes which are generally designated by two distinct terms the *sacred* and the *profane,* popularly spoken of as secular.

This defines the scope of religion. For understanding the function -of religion the following points regarding things sacred should be noted :

The first thing to note is that things sacred are not merely higher than or superior in dignity and status to those that are profane. They are just different. The sacred and the profane do not belong to the same class. There is a complete dichotomy between the two. As Prof. Durkhiem observes[2] :—

> "The traditional opposition of good and bad is nothing beside this; for the good and the bad are only iwo opposed species of the same class, namely, morals, just as sickness and health are two different aspects of the same order of facts, life, while the sacred and the profane have always and everywhere been conceived by the human mind as two distinct classes, as two worlds between which there is nothing in common."

The curious may want to know what has led men to see in this world this dichotomy between the sacred and the profane. We must however refuse to enter into this discussion as it is unnecessary for the immediate purpose we have in mind.[3]

Confining ourselves to the issue the next thing to note is that the circle of sacred objects is not fixed. Its extent varies infinitely from religion to religion. Gods and spirits are not the only sacred things. A rock, a tree, an animal, a spring, a pebble, a piece of wood, a house, in a word anything can be sacred.

1 This definiton of religion it by Prof. E'nvile Durkhiem. See his The Elementary Forms of the Religious Life' p. 47. For the discussion that follows I have drawn upon the same authority.

2 Prof. Durkhiem's The Elementary Forms of the Religious Life p.38

3 The curious may refer to page 317 of the above book.

Things sacred are always associated with interdictions otherwise called *taboos*. To quote Prof. Durkhiem[1] again :

> "Sacred things are those which the interdictions protect and isolate; profane things, those to which these interdictions are applied and which must remain at a distance from the first."

Religious interdicts take multiple forms. Most important of these is the interdiction on contact. The interdiction on contact rests upon the principle that the profane should never touch the sacred. Contact may be established in a variety of ways other than touch. A look is a means of contact. That is why the sight of sacred things is forbidden to the profane in certain cases. For instance, women are not allowed to see certain things which are regarded as sacred. The word (i.e., the breath which forms part of man and which spreads outside him) is another means of contact. That is why the profane is forbidden to address the sacred things or to utter them. For instance, the Veda must be uttered only by the Brahmin and not by the Shudra. An exceptionally intimate contact is the one resulting from the absorption of food. Hence comes the interdiction against eating the sacred animals or vegetables.

The interdictions relating to the sacred are not open to discussion. They are beyond discussion and must be accepted without question. The sacred is 'untouchable' in the sense that it is beyond the pale of debate. All that one can do is to respect and obey.

Lastly the interdictions relating to the sacred are binding on all. They are not maxims. They are injunctions. They are obligatory but not in the ordinary sense of the word. They partake of the nature of a categorical imperative. Their breach is more than a crime. It is a sacrilege.

The above summary should be enough for an understanding of the scope and function of religion. It is unnecessary to enlarge upon the subject further. The analysis of the working of the laws of the sacred which is the core of religion should enable any one to see that my answer to the question why beef-eating should make the Broken Men -untouchables is the correct one. All that is necessary to reach the answer I have proposed is to read the analysis of the working of the laws of the sacred with the cow as the sacred object. It will be found that Untouchability is the result of the breach of the interdiction against the eating of the sacred animal, namely, the cow.

1 The Elementary Forms of the Religious Life p 41, Interdictions which come from religion must be distinguished from those which proceed from magic to a discussion of this subject see Ibid. p. 300.

As has been said, the Brahmins made the cow a sacred animal. They did not stop to make a difference between a living cow and a dead cow. The cow was sacred, living or dead. Beef-eating was not merely a crime. If it was only a crime it would have involved nothing more than punishment. Beef-eating was made a sacrilege. Anyone who treated the cow as profane was guilty of sin and unfit for association. The Broken Men who continued to eat beef became guilty of sacrilege.

Once the cow became sacred and the Broken Men continued to eat beef, there was no other fate left for the Broken Men except to be treated unfit for association, i.e., as Untouchables.

Before closing the subject it may be desirable to dispose of possible objections to the thesis. Two such objections to the thesis appear obvious. One is what evidence is there that the Broken Men did eat the flesh of the dead cow. The second is why did they not give up beef-eating when the Brahmins and the non-Brahmins abandoned it. These questions have an important bearing upon the theory of the origin of untouchability advanced in this book and must therefore be dealt with.

The first question is relevant as well as crucial. If the Broken Men were eating beef from the very beginning, then obviously the theory cannot stand. For, if they were eating beef from the very beginning and nonetheless were not treated as Untouchables, to say that the Broken Men became Untouchables because of beef-eating would be illogical if not senseless. The second question is relevant, if not crucial. If the Brahmins gave up beef-eating and the non-Brahmins imitated them why did the Broken Men not do the same? If the law made the killing of the cow a capital sin because the cow became a sacred animal to the Brahmins and non-Brahmins, why were the Broken Men not stopped from eating beef? If they had been stopped from eating beef there would have been no Untouchability.

The answer to the first question is that even during the period when beef-eating was common to both, the Settled Tribesmen and the Broken Men, a system had grown up whereby the Settled Community ate fresh beef, while the Broken Men ate the flesh of the dead cow. We have no positive evidence to show that members of the Settled Community never ate the flesh of the dead cow. But we have negative evidence which shows that the dead cow had become an exclusive possession and perquisite of the Broken Men. The evidence consists of facts which relate to the Mahars of the Maharashtra to

whom reference has already been made. As has already been pointed out, the Mahars of the Maharashtra claim the right to take the dead animal. This right they claim against every Hindu in the village. This means that no Hindu can eat the flesh of his own animal when it dies. He has to surrender it to the Mahar. This is merely another way of stating that when eating beef was a common practice the Mahars ate dead beef and the Hindus ate fresh beef. The only questions that arise are : Whether what is true of the present is true of the ancient past? Can this fact which is true of the Maharashtra be taken as typical of the arrangement between the Settled Tribes and the Broken Men throughout India?

In this connection reference may be made to the tradition current among the Mahars according to which they claim that they were given 52 rights against the Hindu villagers by the Muslim King of Bedar. Assuming that they were given by the King of Bedar, the King obviously did not create them for the first time. They must have been in existence from the ancient past. What the King did was merely to confirm them. This means that the practice of the Broken Men eating dead meat and the Settled Tribes eating fresh meat must have grown in the ancient past. That such an arrangement should grow up is certainly most natural. The Settled Community was a wealthy community with agriculture and cattle as means of livelihood. The Broken Men were a community of paupers with no means of livelihood and entirely dependent upon the Settled Community. The principal item of food for both was beef. It was possible for the Settled Community to kill an animal for food because it was possessed of cattle. The Broken Men could not for they had none. Would it be unnatural in these circumstances for the Settled Community to have agreed to give to the Broken Men its dead animals as part of their wages of watch and ward? Surely not. It can therefore be taken for granted that in the ancient past when both the Settled Community and Broken Men did eat beef the former ate fresh beef and the latter of the dead cow and that this system represented a universal state of affairs throughout India and was not confined to the Maharashtra alone.

This disposes of the first objection. To turn to the second objection. The law made by the Gupta Emperors was intended to prevent those who killed cows. It did not apply to the Broken Men. For they did not kill the cow. They only ate the dead cow. Their conduct did not contravene the law against cow-killing. The practice

of eating the flesh of the dead cow therefore was allowed to continue. Nor did their conduct contravene the doctrine of Ahimsa assuming that it has anything to do with the abandonment of beef-eating by the Brahmins and the non-Brahmins. Killing the cow was *Himsa.* But eating the dead cow was not. The Broken Men had therefore no cause for feeling qualms of conscience in continuing to eat the dead cow. Neither the law nor the doctrine of *Himsa* could interdict what they were doing, for what they were doing was neither contrary to law nor to the doctrine.

As to why they did not imitate the Brahmins and the non-Brahmins the answer is two fold. In the first place, imitation was too costly. They could not afford it. The flesh of the dead cow was their principal sustenance. Without it they would starve. In the second place, carrying the dead cow had become an obligaton[1] though originally it was a privilege. As they could not escape carrying the dead cow they did not mind using the flesh as food in the manner in which they were doing previously.

The objections therefore do not invalidate the thesis in any way.

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1 Owing to the reform movement among the Mahars the position has become just the reverse. The Mahars refuse to take the dead animal while the Hindu villagers force them to take it.

PART VI

UNTOUCHABILITY AND THE DATE OF ITS BIRTH

Chapter XV. The Impure and The Untouchables.

Chapter XVI. When did Broken Men become Untouchables ?

CHAPTER XV

THE IMPURE AND THE UNTOUCHABLES

I

WHEN did Untouchability come into existence? The orthodox Hindus insist that it is very ancient in its origin. In support of their contention reliance is placed on the fact that the observance of Untouchability is enjoined not merely by the Smritis which are of a later date but it is also enjoined by the Dharma Sutras which are much earlier and which, according to certain authors, date some centuries before B.C.

In a study devoted to exploring the origin of Untouchability the question one must begin with is : Is Untouchability as old as is suggested to be?

For an answer to this question one has to examine the Dharma Sutras in order to ascertain what they mean when they refer to Untouchability and to the Untouchables. Do they mean by Untouchability what we understand by it to-day? Do the class, to which they refer, Untouchables in the sense in which we use the term Untouchables to-day?

To begin with the first question. An examination of the Dharma Sutras no doubt shows that they speak of a class whom they call Asprashya. There is also no doubt that the term Asprashya does mean Untouchables. The question however remains whether the Asprashya of the Dharma Sutras are the same as the Asprashya of modern India. This question becomes important when it is realized that the Dharma., Sutras also use a variety of other terms such as Antya, Antyaja, Antyavasin and Bahya. These terms are also used by the later Smritis. It might be well to have some idea of the use of these terms by the different Sutras and Smritis. The following table is intended to serve that purpose :—

I. Asprashya

Dharma Sutra	Smriti
1. Vishnu V. 104.	1. Katyayana verses 433, 783.

II. Antya

Dharma Sutras	Smriti
1. Vasishta. (16-30)	1. Manu IV. 79; VIII. 68.
2. Apastambha (III.I)	2. Yajnavalkya I. 148. 197.
	3. Atri 25.
	4. Likhita 92.

III. Bahya

Dharma Sutras	Smriti
1. Apastambha 1.2.39.18	1. Manu 28.
2. Vishnu 16. 14	2. Narada I. 155.

IV. Antyavasin

Dharma Sutras	Smriti
1. Gautama XXXI; XXIII 32	1. Manu IV.79; X.39
2. Vasishta XVIII. 3	2. Shanti Parvan of the Mahabharata 141; 29-32
	3. Madhyamangiras (quoted in Mitakshara on Yaj. 3-280

V. Antyaja

Dharma Sutra	Smriti
1. Vishnu 36.7	1. Manu IV. 61; VIII. 279 2. Yajnavalkya 12.73 3. Brihadyama Smriti (quoted by Mitakshara on Yajnavalkya III. 260) 4. Atri. 199 5. Veda Vyas 1. 12. 13.

II

The next question is whether the classes indicated by the terms Antya, Antyaja, Antyavasin and Bahya are the same as those indicated by the term Asprashya which etymologically means an Untouchable. In other words are they only different names for the same class of people?

It is an unfortunate fact that the Dharma Sutras do not enable us to answer this question. The term *Asprashya* occurs in two places (once in one Sutra and twice in one Smriti). But not one gives an enumeration of the classes included in it. The same is the case with the term *Antya*. Although the word *Antya* occurs in six places (in two Sutras and four Smritis) not one enumerates who they are. Similarly, the word *Bahya* occurs in four places (in two Sutras and two Smritis), but none of them mentions what communities are included under this term. The only exception is with regard to the terms Antyavasin and Antyajas. Here again no Dharma Sutra enumerates them. But there is an enumeration of them in the Smritis. The enumeration of the Antyavasin occurs in the Smriti known as Madhyamangiras and that of the Antyajas in the Atri Smriti and Veda Vyas Smriti. Who they are, will be apparent from the following table :—

ANTYAVASIN	ANTYAJA	
Madhyamangiras	Atri	Veda Vyas
1. Chandala.	1. Nata	1. Chandala.
2. Shvapaka.	2. Meda.	2. Shvapaka.
3. Kshatta.	3. Bhilla.	3. Nata.
4. Suta.	4. Rajaka.	4. Meda.
5. Vaidehika.	5. Charmakar.	5. Bhilla.
6. Magadha.	6. Buruda.	6. Rajaka.
7. Ayogava.	7. Kayavarta.	7. Charmakar.
		8. Virat.
		9. Dasa.
		10. Bhatt.
		11. Kolika.
		12. Pushkar.

From this table it is quite clear that there is neither precision nor agreement with regard to the use of the terms Antyavasin and Antyaja. For instance Chandala and Shvapaka fall in both the categories Antyavasin and Antyaja according to Madhyamangiras and Veda Vyas. But when one compares Madhyamangiras with Atri they fall in different categories. The same is true with regard to the term Antyaja. For example while (1) Chandala and (2) Shvapaka are Antyajas according to Veda Vyas, according to Atri they are not. Again according to Atri (1) Buruda and (2) Kayavarta are Antyajas while according to Veda Vyas they are not. Again (1) Virat (2) Dasa

(3) Bhatt (4) Kolika and (5) Pushkar are Antyaja according to Veda Vyas but according to Atri they are not.

To sum up the position reached so far : neither the Dharma Sutras nor the Smritis help us to ascertain who were included in the category of Asprashya. Equally useless are the Dharma Sutras and the Smritis to enable us to ascertain whether the classes spoken of as Antyavasin, Antyaja and Bahya were the same as Asprashya. Is there any other way of ascertaining whether any of these formed into the category of Asprashya or Untouchables? It would be better to collect together whatever information is available about each of these classes.

What about the Bahyas? Who are they? What are they? Are they Untouchables? They are mentioned by Manu. To understand their position, it is necessary to refer to Manu's scheme of social classification. Manu divides the people into various categories. He first[1] makes a broad division between (1) Vaidikas and (2) Dasyus. He then proceeds to divide the Vaidikas into four sub-divisions: (1) Those inside Chaturvarnya (2) Those outside Chaturvarnya (3) Vratya and (4) Patitas or outcastes.

Whether a person was inside Chaturvarnya or outside, was a question to be determined by the Varna of the parents. If he was born of the parents of the same Varnas, he was inside the Chaturvarnya. If, on the other hand, he was born of parents of different Varnas i.e., he was the progeny of mixed marriages or what Manu calls *Varna Samkara,* then he was outside the Chaturvarnya. Those outside Chaturvarnya are further sub-divided by Manu into two classes. (1) Anulomas and (2) Pratilomas. Anulamas[2] were those whose fathers were of a higher Varna and mothers of a lower Varna. Pratilomas, on the other hand, were those whose fathers were of a lower Varna and the mothers of a higher Varna. Though both the Anulomas and Pratilomas were alike for the reason that they were outside the Chaturvarnya. Manu proceeds to make a distinction between them. The Anulomas, he calls *Varna Bahya* or shortly *Bahyas,* while Pratilomas he calls *Hinas*. The Hinas are lower than the Bahyas. But neither the Bahyas nor the Hinas does Manu regard as Untouchables.

1. See Manu 1, 45,

2 Ibid

Antya as a class is mentioned in Manu IV.79. Manu however does not enumerate them. Medhatithi in his commentary suggests that Antya means Mlecha, such as Meda, etc. Buhler translates Antya as a low-caste man.

There is thus nothing to indicate that the Antyas were Untouchables. In all probability, it is the name given to those people who were living in the outskirts or *end* (Anta) of the village. The reason why they came to be regarded as low is to be found in the story narrated in the Brahadaranyaka Upanishad (1.3) to which reference is made by Mr. Kane.[1] The story is that-

> "Gods and Asuras had a strike and the gods thought that they might rise superior to the Asuras by the Udgithana. In this occurs the passage 'this devata (Prana) throwing aside the sin that was death to these devatas (vak, etc.) sent it to ends of these devatas there; therefore one should not go to the people outside the Aryan pale nor to *disam anta* (the ends of the quarters) thinking, otherwise I may fall in with *papmani* i.e., death."

The meaning of Antya turns on the connotation of the phrase 'disam Anta' which occurs in the passage quoted above. If the phrase 'ends of the quarters' can be translated as meaning the end of the periphery of the village, without its being called a far-fetched translation, we have here an explanation of what Antya originally meant. It does not suggest that the Antyas were Untouchables. It only meant that they were living on the outskirts of the village.

As to the Antyajas, what we know about them is enough to refute the view that they were Untouchables. Attention may be drawn to the following facts[2] :

In the Shanti Parvan (109.9) of the Mahabharat there is a reference to Antyajas who are spoken of as Soldiers in the Army. According to Sarasvativiiasa, Pitamaha speaks of the seven cases of Rajakas included in the term Antyaja as Prakritis. That Prakritis mean trade guilds such as of washermen and others is quite clear from the Sangamner Plate of Bhillama II dated Saka 922 which records the grant of a village to eighteen Prakritis. Viramitrodaya says that Srenis mean the eighteen castes such as the Rajaka, etc., which are collectively called Antyajas. In view of these facts how could the Antyajas be said to have been regarded as the Untouchables?

Coming to the Antyavasin, who were they? Were they Untouchables? The term Antyavasin has been used in two different

1. Kane– History of Dharma Shastra II. Part I. p. 167.
2. Kane– History of Dharma Shastra. Vol. II. part I. p. 70